

State vs Venkat Rao @ Anna Etc on 13 December, 2023

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IN THE COURT OF MS. SHEFALI SHARMA:
ADDL. SESSIONS JUDGE-02(NORTH):
ROHINI DISTRICT COURTS : DELHI

In the matter of:-
(Sessions Case No. 478/2017)

FIR No.	49/2017
Police Station	Alipur
Charge sheet filed Under Section	365/395/34 IPC
Charge framed Under Section	365/395/34 IPC

State V/s	Venkat Rao @ Anna S/o Narayan Rao R/o H.No. B-184, Mange Ram Park, Budh Vihar Phase - II, Delhi. Permanent Address: H.No.26, New Water Tank Colony, Kharagpur, West Bengal.Accused
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Date of institution	11.08.2017
Arguments concluded on	06.12.2023
Judgment Pronounced on	13.12.2023
Decision	Acquitted

JUDGMENT

BRIEF FACTS

1. Events which set the prosecution machinery into motion are that on 02.02.2017, the complainant Ranjit Kumar Das, who was a driver of the truck bearing no. HR39B-8133, SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna along with his helper Birju loaded 500 bags of rice from rice mill in district Kaithal Haryana, which was to be delivered at a godown at Alipur.

That on the said day after entering Singhu Border at about 11.00 p.m., they reached one Dharam Kanta, Old GT Karnal Road and asked one person the way for going to godown of one Pannalal. When they heard the noise of someone shouting, complainant Ranjit stopped his truck and that time two persons aged about 30-35 years boarded the truck from both sides and started beating him and his helper Birju in the cabin. They tied their hands and legs and blind folded them. Some persons then also boarded the truck and caught hold of them. Thereafter, they were drove by someone in the truck to various places and were threatened that if they would make any noise they

would be killed. After sometime, they were deboarded from the truck and made to sit in a car and driven to some place. Thereafter, they were forced to sit in a pit for 2-2 ½ hours. Again they were made to sit in the car and after sometime the complainant and his helper managed to escape and saw their truck parked on a road towards Karnal. Somebody untied his hands and thereafter taking a mobile phone from someone the complainant called his owner Sonu, who reached the spot and called the police. All three of them reached the police station and statement of Ranjit Kumar Das was recorded and eventually the present FIR was registered under Section 392/365/34 IPC.

After recording the statement of other witnesses and SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna on completion of the investigation, the charge sheet had been filed under Section 365/395/34 IPC by the IO.

CHARGE

2. On committal of the case to the Court of Sessions, vide order dated 10.01.2018 charge under Section 365/395 IPC was found to be made out against the accused Venkat Rao @ Anna and accused Vipin @ Pankaj was discharged by my Ld. Predecessor vide orders dated 03.01.2018. The formal charge as above was framed against the accused Venkat Rao @ Anna on 10.01.2018 to which he pleaded not guilty and claimed trial.

PROSECUTION EVIDENCE

3. Thereafter, prosecution in support of its case have examined 20 witnesses in all.

PW1 is ASI Fateh Singh. He deposed that on 05.02.2017, he was posted at PS Alipur and was working as Duty Officer. That on that day at about 12.35 a.m., he received rukka from SI Gajender and accordingly, he got registered the present FIR Ex.PW1/A and made endorsement Ex.PW1/B on the rukka vide DD No.3A and after registration of the FIR, handed over the copy of FIR and original rukka to SI Gajender for investigation. He has also proved the certificate under Section 65B Indian Evidence Act on Ex.PW1/C. PW2 is SI Zile Singh from RTO Office, Sonapat, Haryana. He has deposed that vehicle no. HR39B 8133 which is SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna registered in the name of Sh.Bijender Singh S/o Sh.Raghubir Singh R/o Sikka Colony, Sonapat, Haryana, which was registered on 19.03.2016. He further deposed that said vehicle was in the name of Gaurav Lamba S/o Sh. Bhagirath, R/o H.No. 260/2, Vishnoi Colony, Hissar and proved the registration certificate as Ex.PW2/A. PW3 is HC Balraj. He has deposed that on 12.04.2017, he was posted at PS Alipur and on that day, on the instructions of the IO, he along with witnesses Ranjeet Kumar and Birju reached at Tihar Jail Complex at Jail No.3 for conducting the TIP of accused Venkat Rao. He further deposed that he produced the witnesses Ranjeet Singh and Birju before Ld. M.M. and after conducting the TIP proceedings, he moved an application before Ld. M.M. for supply of copies of TIP proceedings.

He further deposed that he came to know that accused was correctly identified by witness Birju. Thereafter, they came back to PS. PW4 is Sh. Balbir. He has deposed that he was working as security guard at TATA Pasco Kundlu, Sonipat Haryana. That on 02.02.20217, he was on night duty from

7.00 p.m. to 7.00 a.m. That his duty was on the main gate of the company and at about 2.45/3.00 a.m., he was present at the gate of the company and inside the gate. He further deposed that outside the gate two persons knocked the gate of the company and he saw there was a swelling in the hands of those two SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna persons. That in the meanwhile, one vehicle came there for repairing and he opened the door of the main gate and said those two persons came inside the gate. He further deposed that said two persons asked for mobile phone from him but he was not having any mobile phone. He further deposed that he asked from the driver of the said vehicle which came inside the company for repairing and said those two persons made a call to their owner after taking the mobile phone from the driver.

He further deposed that about 20-25 minutes, the owner of those two persons came there and he told him that he had seen the swelling in the hands of those two person. That thereafter, said owner and those two persons left the company. He further deposed that police came and made inquiries from him and recorded his statement.

PW5 is Sh. Vikram, the then Ld. M.M. He deposed that on 07.04.2017, an application was put up before him by the IO SI Gajender Singh for conducting the TIP which was marked to me by Ld. CMM (North). That accused produced in custody in muffled face and he fixed the TIP on 12.04.2017 at Tihar Jail at 2.00p.m. vide his endorsement Ex.PW5/A and IO is directed to produce the witnesses on 12.04.2017.

He further deposed that on 12.04.2017, he reached at Tihar Jail and IO alongwith witnesses were met him outside the jail. That he entered in TIP room and witnesses and IO were asked to wait outside. He further deposed that Sh. Jitender Patel, Asstt. Superintendent Jail has produced the accused Venkot Rao SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna @ Venktesh Rao @ Raju and 9 other inmates of similar built by the Jail Superintendent and accused has preferred to stand at serial no. 5th from his left to right which is at serial no. 6th from my right to left. He further deposed that witness Ranjeet was called inside the TIP room and asked to identify the accused but witness Ranjeet Kumar failed to identify the accused and stated that he was not able to recognized any face. That witness Ranjeet was asked to leave the TIP room. He further deposed that now accused has preferred to stand at serial no. 3rd from left to right which is at serial no. 8th from my right to left. That thereafter, second witness Birju S/o Nageshwar was called inside the TIP room and he was asked to identify the accused and he correctly identified the accused Venkot Rao @ Venktesh Rao @ Raju who was standing at serial no. 3 from left to right in the row. That the TIP proceedings is Ex.PW5/B which bears his signature at point A and signature of witness Birju at point A, witness Ranjeet at point B and LTI of accused Venkot Rao @ Venktesh Rao @ Raju at point C. He further deposed that certificate regarding correctness of TIP is Ex.PW5/C. PW6 is Sh.Sunil Kumar. He has deposed that he is running his shop of rice brokerage at shop no. 2513/17, Gali Lalten, Naya Bazar, Delhi and was running the said shop for the last more than 8 years. That on 31.01.2017, he received an order from B. S. Enterprises for the purchase of 25 tons of rice (1121 quality of rice). Thereafter, he had a talk with Sh. Naresh of Ridhi Sidhi Overseas, Kaithal, Haryana and purchased the SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna aforesaid rice for B. S. Enterprises and asked to deliver the aforesaid rice before Anand Dharam Kanta, Village Alipur in the godown of Panna Lal Shri Krishan.

That on 03.02.2017, at about 7:00 pm, he received a telephonic call from Sh. Naresh Garg and he informed that the truck, which was loaded with 25 tons of rice was coming to deliver, but in the night of 02.02.2017, the said rice was looted from the truck near Alipur, Delhi and truck was found abandoned in empty condition at Kundli Border, Haryana, G. T. Karnal Road. He further deposed that as per their business, he had not paid for the aforesaid 25 tons of rice as usually they used to pay amount after the delivery of rice and they only contact in the mobile phones. He further deposed that later on police called him and recorded my statement in this regard.

PW7 is Sh. Ranjeet Kumar Das. He has deposed that he is a driver by profession and was employed as a driver in truck no. HR-39B-8133 of Sh. Surender S/o Bijender R/o Gautam Colony, Narela, Delhi. That on 02.02.2017, he alongwith Birju, conductor had gone to the Kaithal in the Raj Rana Transport. That from there at Ridhi Sidhi Rice Mill, he had loaded about 500 bags of rice in the aforesaid truck and it has to be delivered near Dharam Kanta, Alipur in a godown. He deposed that he forgot the name of owner of the godown.

He further deposed that they reached at Border at about 10:30 pm. That after paying the Toll Tax at Border, they reached Anand Dharam Kanta, Alipur. That one employee of the SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna Dharam Kanta told him to park his truck in the parking and he parked the said truck and was going to park in the parking. That in the meanwhile, he heard a voice of one person from the side of conductor and thereafter he immediately stopped his truck. That when he stopped his truck, two persons came on a motorcycle and they parked their motorcycle in front of his truck. The said two persons started abusing them. That both those persons stepped into the truck and started giving beatings to him and his conductor. That he alongwith his conductor was overpowered by those two persons and in the meanwhile some other persons also entered in the said truck by opening the door of the truck. He further deposed that his hands and legs were tied and his eyes were also blind folded with piece of cloth. That after some time, he observed that the vehicle was started but again said, his conductor had seen that the vehicle had been started, however, his hands were tied. That thereafter, the vehicle started moving and had travelled for 10-15 minutes. That thereafter, they were made to alight from the truck by those persons and were made to sit in a car. Thereafter, the car also started moving. He further deposed that after travelling in the car for 10-15 minutes, they were again made to get down from the car. That thereafter, they were made to walk for 10-15 paces. He further deposed that they were made to sit in a pit where there was a farm house also and they also threatened them that in case they raised alarm then they would be killed. That thereafter, they were confined at the said place for around 2- 2 1/2 hours.

SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna He further deposed that after that there was a voice of somebody that they should be taken out from the pit and thereafter they were taken out from the pit and made to sit in the car again. That thereafter, car again started travelling for about 20-25 minutes at a very slow speed. Thereafter, the car was stopped and after untying the ropes of the legs of both of them, they were made to alight from the vehicle. That after walking for 3-4 paces, they were pushed towards the side of the road. That they found themselves near Piyau Manihari. That they could not find anybody in the surrounding and those persons went away with the car.

He further deposed that thereafter, he rubbed his head / face against a tree, as a result of which the cloth tied on his face was removed. His hands were still tied from back side. Thereafter, he removed the cloth from the face of his conductor Birju with his teeth. Thereafter, they started walking, but nobody from the godowns or factories helped us. Thereafter, they crossed the road to the other side and after walking for 10 paces, they found their truck in the area of Haryana having the face towards Karnal. That the vehicle was empty and was not having any rice.

He further deposed that they reached near the gate of the factory and he requested to guard to help them and he (guard) with the help of blade cut the ropes of their hands. That he told him to give a mobile phone, but he did not give mobile phone, thereafter he went to the office of Tata Pascos. That from there they borrowed mobile phone from one driver and made a call to SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna Surender, owner of the truck. They apprised him about the incident and told him to come and helped them as they were at Piyau Manihari near Kundli.

He further deposed that thereafter, within 20-25 minutes, their owner reached there and made a call at 100 number. That Haryana Police came at the spot and the incident was of Delhi. Delhi Police also reached at the spot. That from there they went to police station Alipur. He further deposed that there he lodged his complaint Ex. PW7/A and on the basis of his statement, FIR was registered.

He further deposed that thereafter, they were taken to near Anand Dharam Kanta, from where they were kidnapped and he pointed out the place from where he alongwith Birju was kidnapped in truck and their truck was looted. They also shown the places where in a pit they were confined by the assailants. He further deposed that his truck which was lying abandoned bearing no. HR-39B-8133 was also taken into possession vide seizure memo Ex PW7/B. He further deposed that he is unable to identify the robbers who first entered into his truck as well as abducted them abducted in a car and looted the rice as he only had a glimpse of the said persons.

PW8 is Sh. Birju. He deposed that he do not remember the exact date, month or year of the incident, however the incident took place about one year back and on that day, he was working as a helper on Tata truck bearing no. HR-39B-8133 SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna and Ranjeet Kumar was working as a driver on that truck. He further deposed that on that day, they loaded 500 gunnies bags of rice from Ridhi Sidhi Rice Mills Kaithal and started they journey for Delhi. That at about 10:00/11:00 pm, they reached Anand Dharam Kanta situated at Old G.T.K. Road and at the Dharam Kanta, driver Ranjeet asked path for the godown where they had to unload the rice. That person told them that the godown is nearby and they should park the truck. He further deposed that when Ranjeet was parking the truck, someone shouted from back side of truck and Ranjeet stopped the truck. Thereafter, the two boys came there and entered the cabin of the truck from both side and started beating us. That both the accused persons took the control over the truck and one of them started driving the truck, while they were in the cabin of the truck. He further deposed that accused persons tied his hands and covered his eyes with a cloth. That after driving the truck for some time, accused persons took them out of the truck and they were got seated in a car. He further deposed that accused persons threatened to kill them, if they tried to be over smart. Thereafter, they were taken out of the car at a separate place. He further deposed that they were got

seated at a vacant space and kept there for a long time and again they were put in the car and they started driving the car. That after some time, they were thrown out of the car. He further deposed that driver Ranjeet put off the cloth from his eyes and thereafter, they started moving on their foot. He further deposed that they tried to seek help from the guards of the nearby godowns so that their SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna hands could be untied, but nobody helped us. That after some time, they saw their truck was available on the side of the road. They met with one person who helped them and untied their hands and they took a phone of one truck driver and made a call to their employer namely Sonu. He further deposed that after 15 to 20 minutes, their employer Sonu came there at Piyau Manihari Kundli, Haryana and called the police. He further deposed that they were not medically examined and they had not sustained any injury. Later on, they alongwith the driver and owner Surender @ Sonu went to the PS. He further deposed that he was not able to identify the accused due to lapse of time.

He further deposed that he alongwith driver Ranjeet accompanied the police to the spot, where their truck was robbed. They also accompanied the police to the spot at Kundli, where they were released. They also took the police to the guard, who had cut the ropes of their hands, but he do not remember the name of that guard. He further deposed that he also went to Tihar Jail alongwith driver Ranjeet and police and had correctly identified one of the accused in the TIP proceedings conducted by the Ld. Judge, but his name was not disclosed to him. He further deposed that he had correctly identified the accused before the Ld. Judge and had pointed out that person at that time and this fact was recorded by the Ld. Judge. He further deposed that the accused person, who was identified by him, had given beatings him in the cabin. That total 10 to 15 persons had entered SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna the cabin of the truck.

PW9 is Sh.Virender is the registered owner of truck bearing registration no. HR-39B 8133. He has deposed that at the time of occurrence, the driver over the aforesaid truck was Sh. Ranjeet Singh and the helper over the said truck was Birju and the aforesaid persons had loaded rice bags from Kaithal, Haryana and the said bags were transported to Delhi. He further deposed that it was informed to him that on the way i.e. near Kunal Highway Dharamkanta, a robbery was committed upon the aforesaid persons. That during investigation, the aforesaid truck was seized by the police. That he had moved an application and took the truck on superdari vide superdarinama Ex.PW9/A. He further deposed that the said truck is still with him and Panchnama in respect of the said truck is Ex.PW9/B. He has identified the photograph of aforesaid truck available in judicial file and has been exhibited as Ex.P-1 collectively being of the same truck which he took on superdari.

PW10 is HC Vijay Kumar. He has deposed that on 25.03.2017, he was posted at PS Bhalaswa Dairy and on that day, at about 9:15 am, he was on patrolling duty and while riding on government motorcycle, when he reached at ganda naala, Swaroop Nagar, Inspector Vinay Kumar gave a signal to me. Accordingly, he had stopped his motorcycle. That he introduced himself as Inspector posted with Special Cell and he disclosed to him the contents of secret information and requested him for joining the raiding party. Accordingly, I joined the raiding party.

SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna He further deposed that on or about 10:10 pm, accused Venkat Rao @ Anna, came from the side of Libaspur. That in his

presence, Inspector Vinay Kumar as well as the police officials accompanying him managed to apprehend accused Venkat Rao and one country made English pistol was recovered from the right side pocket of pant worn by accused. He further deposed that SI Ravi had checked the said pistol which was found loaded with three live cartridges of 7.65 mm bore. That SI Ravi had measured the said pistol and cartridges and prepared its sketch and thereafter kept them in a plastic container and the said container was sealed with the seal of SPL CELL SWR 20 and seized the same vide seizure memo. That SI Ravi prepared rukka and got the FIR registered through Ct. Kishore. After registration of FIR, the investigation of said case was marked to ASI Anil, who effected the arrest of accused Venkat Rao in the said FIR. The arrest memo of accused Venkat Rao prepared in FIR No. 22/17 is Ex. PW10/A. PW11 is Sh. Surender @ Sonu. He has deposed that in the year 2017, his father was owing two trucks bearing registration nos. HR-39E-8133 and HR-69B-0696 and he used to look after the transport business of his father and also used to manage the aforesaid trucks. That they had kept driver Ranjeet Kumar Das, who used to drive truck no. HR-39E-8133 and Birju has helper in the aforesaid truck.

He further deposed that on 02.02.2017, paddy (dhaan) was loaded in the aforesaid truck and had to be delivered at SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna Kaithal. That from Karnal, their driver and conductor had loaded rice bags in the aforesaid truck and had to be delivered the same at Alipur. That on or about 10:30 pm, he had received a phone call of their driver Ranjeet and he informed him that he had reached while driving the truck at Alipur Border and further informed him that he would reach at the place of delivery of rice bags in half an hour also. That on the same night at about 3:20 am, he had again received a phone call from an unknown number and it was Ranjeet, who had made the said call to him and over the said phone call Ranjeet had informed him that while he was passing from in front of Tata Pasco showroom, his truck has been robbed containing rice bags. That he also informed him that the robbers had tied him as well as conductor Birju with a rope and they have been thrown at near Piyau Manihari.

He further deposed that upon the receipt of the said phone call, he alongwith his father Sh. Bijender Singh and his younger brother Monu rushed to the place of information i.e. at in front of Toyota showroom, where they met their driver and conductor. Thereafter, they searched for their truck and found their truck parked to 200-250 meters away from the said place. He further deposed that he had checked the said truck and found all the 500 rice bags robbed from the said truck and that each bag was of 50 kg.

He further deposed that he had made a call to the police and the police officials of Haryana Police came there and made inquiries from them and came to know the place of robbery SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna within the jurisdiction of Delhi. Thereafter, police officials of PS Alipur reached there. The said police officials requested their driver and conductor for making statement, but since they were perturbed, they were not able to make statements. That he had also informed about the occurrence to Sh. Gurmail i.e. the owner of Raj Rana Transport Company with which our trucks were attached.

He further deposed that during the morning hours of 03.02.2017, he alongwith his driver and conductor went to PS Alipur and police had recorded their statements and got the FIR registered.

That police had also seized the aforesaid truck vide seizure memo Ex. PW7/B. That police had also seized the documents of aforesaid truck vide memo Ex. PW11/A and the photocopies of the documents are annexed with the memo. He further deposed that later on he got released the aforesaid truck on superdari which is still with him.

PW12 is Sh.Naresh. He has deposed that he has been running a rice mill in the name of Ridhi Sidhi Overseas at Village Bhanta, National Highway no. 152, District Kaithal, Haryana. That on 31.01.2017, an order for supply of 25 tons of rice was given through one Sh. Sunil, for supplying the same to B. S. Enterprises. The said delivery was to be made at near Anand Dharam Kanta i.e. at the godown at village Alipur of Panna Lal Shri Krishan Das Firm.

He further deposed that on 02.02.2017, he had contacted the owner of Raj Rana Transport namely Sh.Gurmail SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna Singh and said Sh. Gurmail Singh had sent truck bearing no. HR- 39B-8133 at his rice mill and on that day, they had loaded 25 tons of rice in 500 sacks in the said truck. The driver over the said truck was Ranjeet. He had also prepared a bulity (bill of lading) and handed over the said bulity (bill of lading) to driver Ranjeet. However, inadvertently he had mentioned the name of driver as Rajiv in the said bulity (bill of lading). He further deposed that the said truck had left their rice mill on or about 7:00 pm, on 02.02.2017 alongwith aforesaid rice sacks.

He further deposed that on the next day i.e. on 03.02.2017, when he woke up at around 7:00 am, he found a missed call of Sh.Gurmail Singh over his phone and the said call was made at about 4:00 am. He further deposed that he had immediately made a call to Sh. Gurmail Singh and he informed that the goods in the aforesaid truck as well as truck had been robbed. He further informed him that the truck had been recovered lying abandoned at Kundli, Haryana, but the goods i.e. rice bags were found stolen.

He further deposed that he had immediately alongwith his family members left for PS Kalayat, District Kaithal, Haryana and on reaching there, it was informed by him to the police officials of PS Kalayat that since the occurrence took place in the jurisdiction of Delhi, thus the FIR would be registered in Delhi. Accordingly, he alongwith Sh. Gurmail and other persons known to him visited PS Alipur and on the basis of statement made by driver Ranjit, police got the FIR registered. He further deposed SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna that during investigation, he had handed over to IO the photocopy of bulity (bill of lading), photocopy of delivery challan as well as weight slip of robbed rice to the IO, which IO had seized vide seizure memo Ex. PW12/A. He has also proved the attested copy of weight slip as Ex. PX, of bulity (bill of lading) as Ex. PY and of delivery challan as Ex. PZ.

PW13 is Sh.Gurmail Singh. He has deposed that he has been running a company in the name of Raj Rana Transport at Jind Road, near Maharaja Aggarwal Charitable Hospital. That on 02.02.2017, Sh. Naresh, the owner of Ridhi Sidhi Overseas had contacted me and requested me for sending them truck as he had to supply 25 tons of rice at B. S. Enterprises near Anand Dharam Kanta, Alipur. Accordingly, he had sent truck bearing no. HR-39B-8133 at the rice mill of Sh. Naresh being driven by driver Ranjit.

He further deposed that on that day, Sh. Naresh had loaded 25 tons of rice in 500 sacks in the said truck. That on the next day i.e. on 03.02.2017, in the early morning hours, he had received a phone call of Surrender @ Sonu i.e. the driver of the aforesaid truck and he informed me that the robbery had been committed and the aforesaid truck as well as the rice bags loaded in the said truck had been robbed. He had immediately made a call to Sh. Naresh and informed Sh. Naresh that the truck had been recovered lying abandoned at Kundli, Haryana, but the goods i.e. rice bags were found stolen.

SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna That thereafter, he had immediately alongwith Sh.Naresh and his other family members left for PS Kalayat, District Kaithal, Haryana and on reaching there, it was informed to us by the police officials of PS Kalayat that since the occurrence took place in the jurisdiction of Delhi, thus the FIR would be registered in Delhi. Accordingly, he alongwith Sh. Naresh and other persons known to them visited PS Alipur and on the basis of statement made by driver Ranjit, police got the FIR registered.

PW14 is Sh. Sunil Jha. He has deposed that in the year 2017, he had been working as Security Guard in the house of Sh. Ashok Khartri at Village Kundli, District Sonapat, Haryana. The said house of Sh. Ashok Khatri was situated at Fiem Company at Kundli.

He further deposed that on 02.02.2017, he was on duty as Security Guard in the aforesaid company from 7:00 pm to 7:00 am of 03.02.2017. That in the intervening night of 02/03.02.2017, on or about 2:45 am, while he was performing his duty, two persons, who disclosed their names as Rajit Kumar Das and Birju met him at the other side of the gate of the company and he found both the hands of said persons tied backwards with ropes. He made inquiries from both the aforesaid persons and they stated to him that they are the driver and helper of a truck and some unknown persons had robbed their vehicle containing rice bags and after robbery, they had been thrown at in front of Hastinapur Metals Pvt. Ltd. He further deposed that he cut the SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna said ropes with the help of blade. That thereafter, both the said persons requested him for making a call at number 100, but since he was not carrying any such mobile, he could not make any such call.

PW15 is SI Ravi. He has deposed that in the month of March, 2017, he was posted with SWR Special Cell, Pushp Vihar, Saket. That in the first week of March, 2017, he had received an input that one gangster/robber, who was wanted in number of cash van robberies could meet us in Delhi and had been committing offences in Delhi. That he had passed on the said input to the senior police officials, who instructed him for developing the information. That on 24.01.2017, while he alongwith Inspector Vinay Kumar were present at their office, an information was received through an informer that the said gangster/robber would come in the area of Swaroop Nagar in between 9:00 to 10:00 am, on 25.03.2017. That DD No. 19 was lodged in roznamcha and a raiding party was prepared on 25.03.2017 consisting of him, Inspector Vinay, HC Sanjay, Ct. Kishore and other staff. That all the members of the raiding party left their office on 25.03.2017, at about 7:00 am, vide DD No. 2 in a government vehicle as well as in private motorcycles. That they all on or about 8:05 am reached at main GTK road, NH-1 towards Swaroop Nagar, where the said informer met them and gave information that the said gangster would come towards Swaroop Nagar through the said way

and could also carry illegal weapon.

SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna He further deposed that he requested 5 to 6 passersby for joining the raiding party, but none agreed. That on or about 9:15 am, HC Vijay of PS Bhalaswa Dairy had also joined them in the raiding party. That on or about 10:00 am, at the pointing out of informer, they managed to apprehend accused Venkat Rao.

He further deposed that from the formal search of accused, one country made pistol was recovered from the right side pant worn by him. That he had checked the said pistol which was found loaded with three live cartridges. He had prepared the sketch of said pistol and cartridges and also measured them and also seized the said pistol and cartridges after sealing.

He further deposed that he had prepared rukka and got FIR No. 22/17 u/s 25 Arms Act registered at PS Special Cell. That after the registration of FIR, further investigation of the said case was conducted by ASI Anil.

PW16 is ASI Anil. He has deposed that on 25.03.2017, he was posted with Special Cell Pushp Vihar and on that day, after the registration of FIR no. 22/17 u/s 25 Arms Act, the investigation of the said case was marked to him. That he went to the place of occurrence i.e. at main GTK Road, NH-1 towards Swaroop Nagar near Ganda Nala Pul, where he met Inspector Vinay Kumar, SI Ravi, HC Sanjay, HC Vijay of PS Bhalaswa Dairy and other staff of Special Cell.

He further deposed that SI Ravi had produced before him accused Venkat Rao @ Anna as well as one sealed pulanda i.e. plastic jar containing one pistol and three live cartridges. That SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna SI Ravi had also produced before him the memos prepared by him as well as FSL form.

He further deposed that he interrogated accused Venkat Rao and after interrogation, effected his arrest in the said FIR. That during the investigation of case FIR No.22/17, accused Venkat Rao had also made disclosure statement Ex.PW16/A and accused Venkat Rao was arrested vide arrest memo Ex. PW10/A and his personal search was conducted memo Ex. PW16/B. He further deposed that during investigation, accused Venkat Rao had also made supplementary disclosure statements Ex. PW16/C, Ex. PW16/D and Ex.PW16/E respectively. He further deposed that during investigation, IO of the present case met him and collected the copies of relevant memos from him and also recorded his statement.

PW17 is Ct. Sandeep. He has deposed that on 14.04.2017, he was posted at PS Alipur and on that day, accused Venkat Rao was in the lock-up of PS Alipur. He further deposed that the accused was taken out from the lock-up and IO SI Gajender was interrogating the accused. He further deposed that at the same time, complainant Ranjit Kumar Das came to police station and identified the accused.

He further deposed that he alongwith IO and the accused left the PS and accused led them to Old G.T.K. Road, near Anand Dharam Kanta, Alipur and pointed out the place, where he alongwith

Monu committed the offence and overpowered the truck, driver and helper. He further deposed that SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna the accused pointed out the scene of crime and IO prepared pointing out memo Ex. PW17/A. That thereafter, accused led them to G.T.K. Road, Kundli, Haryana, near Toyota warehouse, on the road, where they had left the robbed truck. He further deposed that the accused pointed out the place, where they had left the truck and IO prepared pointing out memo Ex. PW17/B. He further deposed that thereafter, accused was taken to SRHC Hospital, where he was got medically examined and accused led them to Gurudwara Road, in front of Rana Dharam Kanta, in front of the park, road going towards Siraspur, where the bags of rice were unloaded from the truck. He further deposed that the accused pointed out the place, where the bags of rice were unloaded and IO prepared pointing out memo Ex. PW17/C. He further deposed that thereafter, accused led them to the place where co-accused Vipin @ Pankaj @ Ganja could be found, but he was not found. That accused led them near Rajni Gupta Hospital, on the road going from Budh Vihar to Kanjhawala and pointed out the said place from where they had stolen the white colour Santro car and dropped the stolen car, which was used in the commission of present offence and IO prepared pointing out memo Ex. PW17/D. PW18 is HC Kishan Kumar. He has deposed that on 20.04.2017 he was posted at PS Alipur and on that day he joined the investigation with SI Gajender and Ct. Jaideep. That accused Vipin @ Pankaj @ Ganja (already discharged) was taken out of SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna the lock up. That accused led them to near Anand Dharamkata, road going to the side of Alipur and pointed out the said place where they had committed dacoity. That IO prepared pointing out memo of scene of crime. That accused Vipin @ Pankaj @ Ganja led them to GTK Road, Kundli, Haryana near Toyota warehouse and pointed out the same where they had left the truck No. HR-39B-8133 after removing the goods. He further deposed that IO prepared pointing out memo of the same Ex. PW17/B. That thereafter accused Vipin @ Pankaj @ Ganja led them to GTK Road Hastinapur Metals where they left the driver and conductor of the truck and IO prepared point out memo Ex. PW18/A. That thereafter accused Vipin @ Pankaj @ Ganja pointed out near Iron Bridge, Swaroop Nagar, road going from Sindhu Boarder towards Mukbara Chowk where the truck driver and conductor were made to sat in the Santro car from the truck and IO prepared pointing out memo Ex. PW18/B. That thereafter accused Vipin @ Pankaj @ Ganja pointed out near Iron Bridge, Swaroop Nagar road going from Mukarba Chowk to Sidhu Board, on service road near Grill Company warehouse. That IO prepared pointing out memo Ex. PW18/C. That Thereafter, accused Vipin @ Pankaj @ Ganja got medically examined and sent to the lock of PS. PW19 is HC Jaideep. He has deposed on the same lines as that of PW18 HC Kishan Kumar.

PW20 is SI Gajender Singh, who is the IO of the case and deposed on the lines and manner of investigation conducted by him in the present case. He has deposed that on SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna 05.02.2017 he was posted at PS Alipur and on that day, complainant Ranjit Kumar along with helper Birju and owner of the vehicle namely Surrender came to PS and told him that in the intervening night of 02-03.02.2017, some persons robbed his truck along with 500 bags of rice from his truck bearing registration no. HR39B-8133. That the complainant Ranjit Kumar who was driver of the said truck told that the robbers tied his hands and legs as well as hands and legs of helper Birju and left them at national highway Sonipat. He further deposed that he recorded the statement of complainant Ranjit Kumar Ex. PW7/A, prepared rukka Ex. PW20/A and got registered the FIR. That the truck owner Surrender brought the above said

truck and told that the said truck was recovered unattended on the National highway Sonipat and he also stated that the 500 bags of rice, were robbed. That the said truck and registration certificate, national permit and other documents relating to the said truck were taken in possession vide seizure memo Ex.PW7/B and Ex.PW11/A. That thereafter, he along with Surrender, complainant Ranjit Kumar and helper Birju reached at the place of occurrence and at the instance of complainant, he prepared site plan Ex.PW20/B. Thereafter, complainant Ranjit took him (IO) to the place where robbers had left him after tying his legs and hands. He further deposed that at the instance of complainant, he prepared the site plan Ex.PW20/C and recorded the statement of Sunil Jha and Balbir who untied the hands and legs of complainant Ranjit Kumar and his helper and got talked the complainant with the SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna truck owner. That thereafter, they came back to the PS, he recorded the supplementary statement of complainant Ranjit Kumar, helper Birju and Surrender Kumar, owner of the truck. He further deposed that Naresh Garg owner of robbed bags of rice came to PS and handed over him photocopy of bilty, delivery challan and weight slip of robbed rice, which were seized vide seizure memo Ex.PW12/A. That the weight slip of rice, copy of bilty and the duplicate certified copy of bill/delivery challan are Ex. PX, PY, and PZ. He further deposed that he recorded his statement and also recorded the statement of Gurmel Singh, Transporter and statement of Sh. Sunil Kumar.

He further deposed that on 09.02.2017 the said truck was released on superdari to Surrender Kumar, owner of the truck. That on 13.02.2017, Naresh Garg came to PS and filed a complaint Ex. PW20/D wherein he made suspicion against the driver, helper of the said truck and transporter. He recorded his supplementary statement.

He further deposed that on 29.03.2017, he received an information from PS Pushp Vihar, Special Cell that accused Venkat Rao @ Anna was arrested in a case and he disclosed about his involvement in the present case. That on this information, on 06.04.2017 he reached PS Pushp Vihar, Special Cell and obtained the copy of FIR, copy of disclosure statement as well as supplementary disclosure statements of accused Venkat Rao, photocopy of his arrest memo and personal search memo as well as copy of statements of witnesses namely HC Vijay, HC SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna Sanjay, Ct. Kishore, Inspector Vinay Kumar, SI Ravi from IO ASI Anil Kumar. That copy of disclosure statement of the accused and his arrest memo and personal search memo Ex.PW16/A, Ex. PW16/C, Ex. PW16/D, Ex. PW10/A, and Ex. PW16/B respectively. That the copy of FIR is Ex. PW20/E. He further deposed that he recorded the statement of witnesses namely HC Vijay, HC Sanjay, Ct. Kishore, Inspector Vinay Kumar, SI Ravi and IO ASI Anil Kumar. That he moved an application Ex. PW20/F before Ld MM seeking permission to interrogate and arrest the accused Venkat Rao and same was allowed. He further deposed that he went to Tihar Jail and interrogate the accused Venkat Rao and arrested him vide arrest memo Ex. PW20/G and also recorded the disclosure statement of accused Venkat Rao Ex. PW20/H. That on 07.04.2017, he moved an application for TIP of the accused Venkat Rao. That during TIP witness Birju identified him but complainant/driver Ranjit failed to identify him. That copy of the TIP proceedings is Ex. P2 and the TIP proceedings is Ex. PW5/B. That thereafter, accused Venkat Rao was produced before Ld. MM who granted one day police custody on his application. That during police custody, complainant Ranjit Kumar identified the accused Venkat Rao. He further deposed that he recorded the statement of Ranjit Kumar u/s 161 Cr.P.C. That accused led them to place of occurrence, at his

instance and he prepared pointing out memo Ex.PW17/A. He further deposed that accused also led them to the place where he SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna had left the robbed truck and at his instance he prepared the pointing out memo. That thereafter, accused led them to the place i.e Gurudwara Road, in front of Rana Dharam Kanta, Sirasapur where he along with other accused persons unloaded the robbed bags of rice from the aforesaid truck and at his instance, PW20 prepared pointing out Ex. PW17/C. That thereafter, accused took them to Rajni Gupta Hospital Budh Vihar from where he had stolen a Santro car and used in the commission of offence in present case and at his instance, IO prepared pointing out memo Ex.PW17/D. He further deposed that thereafter, accused Venkat Rao led them to the house of co-accused Vipin @ Pankaj (already discharged) at Swaroop Nagar but Vipin @ Pankaj did not meet them at that time. That thereafter, accused Venkat Rao produced before Ld. MM and he was sent to JC. That on the same day, he received a secret information that accused Vipin @ Pankaj was roaming at GTK road, near Iron bridge Swaroop Nagar. That on this information he along with Ct. Manish reached there and at the instance of secret informer they apprehended the accused Vipin @ Pankaj and after making interrogation from him, he arrested accused Vipin @ Pankaj vide arrest memo Ex. PW20/I. He further deposed that on 15.04.2017 Vipin @ Pankaj was produced before Ld MM and he was sent to JC. That he moved an application for TIP of Vipin @ Pankaj which was fixed for 18.04.2017. That during TIP both complainant as well as Birju could not identify him. That on 19.04.2017, one day PC of accused Vipin @ Pankaj was granted but nothing was recovered at SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna his instance. That he had shown the place of occurrence as well as places where he had left the truck and where they unloaded the bags of rice from truck. He further deposed that the complainant and Birju identified Vipin @ Pankaj during police custody. That on him application, NBWs was issued against co-accused Saif to whom accused Venkat Rao and his associates delivered the rice but he could not be arrested till the investigation of instant case remained with him.

He further deposed that he recorded the statement of witnesses and after completion of investigation, challan was prepared and filed in the court qua accused Venkat Rao and Vipin @ Pankaj.

He has also identified four photographs of the aforesaid truck as Ex. P1 and states that these are the photographs of the abovesaid truck which was robbed by the accused Venkat Rao along with his associate and seized by him.

STATEMENT OF ACCUSED UNDER SECTION 294 Cr.P.C

4. Vide a separate statement under Section 294 Cr.P.C. recorded on 28.07.2022, accused admitted the following documents:

1 DD entry no. 48B dated 29.03.2018 Ex.P1 2 TIP proceedings dated 12.04.2017 by Ld. M.M. Ex.P2 Sh. Vikram qua accused Venkat Rao SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna STATEMENT OF ACCUSED UNDER SECTION 313 Cr.P.C

5. After closure of PE, the statement of the accused was recorded u/s 313 Cr.P.C. on 20.11.2023 wherein he denied all the evidence put to him and stated that he has falsely implicated in the present case in connivance with the complainant. He has stated that he never kidnapped or abducted the complainant Ranjit Kumar and his helper Birju in Truck No.HR39-B-8133 or never commit the dacoity or nor 500 bags looted by him. He further stated that all the proceedings were conducted by the IO while sitting at PS and case property planted upon him. That he never gave any disclosure statement neither point out any place of incident rather his signatures were obtained by the police forcibly on several blank papers which were later converted into indiscriminate documents against him to falsely implicate him in the present case. He further stated that he was never arrested at the place and manner as shown by the prosecution. That no such incident ever took place and he is not involved in any manner in the present case. That nothing was recovered from him or at his instance.

6. Thereafter, matter was fixed for final arguments.

ARGUMENTS

7. I have heard Sh. Harvinder Kumar Nar, Ld. Addl. PP for the State and Mr. Arun Sehrawat, Ld. Amicus Curiae for the accused.

SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna

8. It was argued by Ld. Addl. PP for State that the allegations levelled against the accused persons are of serious nature and the prosecution has proved its case vide the testimony of victims PW7 and PW8, who were the material witness.

It was further argued that all the police officials have clearly proved the chain and the manner of investigation and merely because the witnesses are police officials their testimony cannot be disbelieved.

9. On the other hand, Mr. Arun Sehrawat, Ld. Amicus Curiae has argued that accused has been falsely implicated. It was further argued that he never kidnapped or abducted the complainant Ranjit Kumar and his helper Birju in Truck No.HR39-B-8133 or never commit the dacoity or nor 500 bags looted by him. It was further argued the alleged robbed 500 kg rice was never recovered. The weapon of offence i.e. the knife was also not recovered. There is no CCTV Footage of the incident which was seized. It was vehemently argued that there is no public witness examined by the prosecution and the prosecution has failed to prove the case beyond reasonable doubt. Accordingly, all the accused persons deserve acquittal.

10. I have heard the arguments at length and perused the entire record.

SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna FINDINGS

11. Accused had been charged for the offence punishable under Section 365/395 IPC.

12. The relevant Sections are reproduced as under :

SECTION 395 IPC "Punishment for dacoity.--Whoever commits dacoity shall be punished with 1[imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine."

SECTION 365 IPC "Kidnapping or abducting with intent secretly and wrongfully to confine person.--Whoever kidnaps or abducts any person with intent to cause that person to be secretly and wrongfully confined, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine."

PRESUMPTION OF INNOCENCE

13. It is a settled law of criminal jurisprudence that a person is believed to be innocent till the guilt is proved against him. This principle is called The Presumption of Innocence. In another words, the accused is entitled to take advantage of reasonable doubt in respect of his crime. The principle finds its genesis in the Declaration of Human Rights under Article 11 Section 1 incorporated by the United Nations in 1948. It is also SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna mentioned in the European Convention for the Protection of Human Rights in Article 6 Section 2 and United Nations International Covenant on Civil and Political Rights under Article 14, Section 2.

Presumption of Innocence is a re-statement of the rule that in criminal matters the prosecution has the burden of proving guilt of the accused in order to be convicted of the crime of which he is charged.

In Chandrashekhar Vs. State of Himachal Pradesh decided on 06.07.2018 relying on judgment of Data Ram Singh Vs. State of UP passed by the Hon'ble Supreme Court on 06.02.2018, it was held that:

"the freedom of an individual is utmost important and cannot be curtailed specially when guilt if any, is yet to be proved. It is settled law that till such time guilt of a person is proved, he is deemed to be innocent..... A fundamental postulate of criminal juris prudence is a presumption of innocence meaning thereby that a person is believed to be innocent until found guilty....."

Thus, the inference which is culled out from the above is that it is for the prosecution to prove the guilt of the accused beyond reasonable doubt.

14. In this backdrop, I proceed to delve upon the evidence adduced on behalf of the prosecution.

SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna MATERIAL WITNESSES/VICTIMS

15. The prosecution has heavily relied upon the testimony of PW7 Ranjit Kumar and PW8 Birju.

Prime prosecution witnesses PW7 Ranjit Kumar Das and PW8 Birju, who are the victims and were present in the truck have deposed that on the said day after entering Singhu Border at about 11.00 p.m., they reached one Dharam Kanta, Old GT Karnal Road and asked one person the way for going to godown of one Pannalal. When they heard the noise of someone shouting, complainant Ranjit stopped his truck and that time two persons aged about 30-35 years boarded the truck from both sides and started beating him and his helper Birju in the cabin. They tied their hands and legs and blind folded them. Some persons then also boarded the truck and caught hold of them. Thereafter, they were drove by someone in the truck to various places and were threatened that if they would make any noise they would be killed. After sometime, they were deboarded from the truck and made to sit in a car and driven to some place. Thereafter, they were forced to sit in a pit for 2-2 ½ hours. Again they were made to sit in the car and after sometime the complainant and his helper managed to escape and saw their truck parked on a road towards Karnal. Somebody untied his hands and thereafter taking a mobile phone from someone the complainant called his owner Sonu, who reached the spot and called the police. All three of them reached the police station and statement of Ranjit Kumar Das was recorded.

SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna However, in the cross-examination of PW7 Ranjeet Kumar conducted by Id. Counsel for the accused on 19.04.2018, he has failed to identify the accused Venkat Rao @ Anna, rather he admitted in his cross-examination that he had not seen the said accused at the time of incident in his truck and he is not one of the persons who came on motorcycle and quarreled with them. He further admitted that he had failed to identify the accused even in TIP proceedings conducted in Tihar Jail on 12.04.2017 and or even in the police station on 14.04.2017. He further admitted that he had made a statement to the police that accused was not the person who entered into his truck.

PW8 Birju resiled from his earlier statement and despite a lengthy cross-examination by Ld. Addl. PP for the State, he failed to identify the accused. In his cross-examination by Ld. Addl. PP for the State, he categorically denied that he had identified the accused in the TIP proceedings at Tihar Jail although, he identified him before Ld. Magistrate but again resiling from his statement when the accused present in the court was shown to him, he failed to identify. The said witness even resiled even on the material aspect from the place where the rice was loaded in the truck i.e. Kaithal on 02.02.2017 and was confronted with his earlier statement. Although, he deposed regarding the manner of abduction and how he was taken to places but even, in his cross-examination by Id. Counsel for the accused, the witness failed to identify the accused present in the court.

SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna Thus, both the prime prosecution witnesses failed to identify the accused Venkat Rao @ Anna which completely shakes the prosecution story.

As such, it was the case of the prosecution that when they heard the noise of someone shouting, complainant Ranjit stopped his truck and that time two persons aged about 30-35 years boarded the truck from both sides and started beating him and his helper Birju in the cabin. They tied their

hands and legs and blind folded them. Some persons then also boarded the truck and caught hold of them. Thereafter, they were drove by someone in the truck to various places and were threatened that if they would make any noise they would be killed. After sometime, they were deboarded from the truck and made to sit in a car and driven to some place. Thereafter, they were forced to sit in a pit for 2-2 ½ hours. Again they were made to sit in the car and after sometime the complainant and his helper managed to escape. It is highly improbable that victims and PW7 and PW8 did not raise any alarm. There is nothing to suggest that they were threatened by any deadly weapon or their mouth was covered and maintained that their hands and legs were tied. There must be various public witnesses but no public person joined the investigation.

16 Moving forward, now I delve upon the testimony of other material witnesses.

SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna OTHER MATERIAL WITNESSES PW4 Balbir He was the security guard at the relevant time at Tata Pasco Kundi, District Sonipat, Haryana. He deposed that outside the gate two persons knocked the gate of the company and he saw there was a swelling in the hands of those two persons. That in the meanwhile, one vehicle came there for repairing and he opened the door of the main gate and said those two persons came inside the gate. He further deposed that said two persons asked for mobile phone from him but he was not having any mobile phone. He further deposed that he asked from the driver of the said vehicle which came inside the company for repairing and said those two persons made a call to their owner after taking the mobile phone from the driver.

However, from his testimony, nothing incriminating could be culled out against the accused. In fact in his cross- examination, he categorically admitted that what was the goods which were looted or that no such incident took place in his presence.

PW6 Sunil Kumar He deposed that on 03.02.2017, at about 7:00 pm, he received a telephonic call from Sh. Naresh Garg and he informed that the truck, which was loaded with 25 tons of rice was coming to deliver, but in the night of 02.02.2017, the said rice was looted from the truck near Alipur, Delhi and truck was found abandoned in empty condition at Kundli Border, Haryana, G. T. Karnal SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna Road.

He had not seen the incident and is merely a hearsay witness, who himself deposed that he has simply received a telephonic call from Naresh Garg, who had informed him about the robbery on truck which was carrying goods.

17. In this backdrop, I seek to analyse the other evidence adduced by the prosecution.

PW9 Virender & PW11 Surender @ Sonu PW9 Virender deposed that he is the registered owner of truck bearing registration no. HR-39B 8133. That it was informed to him that on the way i.e. near Kunal Highway Dharamkanta, a robbery was committed upon the aforesaid persons. That during investigation, the aforesaid truck was seized by the police. That he had moved an application and took the truck on superdari vide superdarinama Ex.PW9/A. PW11 Surender @ Sonu. He has deposed that they had kept driver Ranjeet Kumar Das, who used to drive truck no. HR-39E-8133

and Birju has helper in the aforesaid truck. That on the night at about 3:20 am, he had again received a phone call from an unknown number and it was Ranjeet, who had made the said call to him and over the said phone call Ranjeet had informed him that while he was passing from in front of Tata Pasco showroom, his truck has been robbed containing rice bags. That he also informed him that the robbers had tied him as well as conductor Birju with a rope and they have been thrown at near SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna Piyau Manihari.

Both the said witnesses are hearsay witnesses. The accused Venkat Rao @ Anna was not even named by the victims who later failed to identify him.

PW12 Naresh & PW13 Gurmail Singh PW12 has deposed that that on 02.02.2017, he had contacted the owner of Raj Rana Transport namely Sh. Gurmail Singh and said Sh. Gurmail Singh had sent truck bearing no. HR- 39B-8133 at his rice mill and on that day, they had loaded 25 tons of rice in 500 sacks in the said truck. He further deposed that on the next day i.e. on 03.02.2017, when he woke up at around 7:00 am, he found a missed call of Sh. Gurmail Singh over his phone and the said call was made at about 4:00 am. He further deposed that he had immediately made a call to Sh. Gurmail Singh and he informed that the goods in the aforesaid truck as well as truck had been robbed. He further informed him that the truck had been recovered lying abandoned at Kundli, Haryana, but the goods i.e. rice bags were found stolen.

PW13 Gurmail Singh has deposed that on the next day i.e. on 03.02.2017, in the early morning hours, he had received a phone call of Surender @ Sonu i.e. the driver of the aforesaid truck and he informed me that the robbery had been committed and the aforesaid truck as well as the rice bags loaded in the said truck had been robbed. He had immediately made a call to Sh. Naresh and informed Sh. Naresh that the truck had been recovered lying abandoned at Kundli, Haryana, but the SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna goods i.e. rice bags were found stolen.

From their respective testimonies nothing incriminating could be culled out against accused and in fact in his cross-examination, PW12 has admitted that he had suspicion over the driver Ranjeet and owner of the transport company Gurmail Singh responsible for the offence. He further admitted that the truck which was recovered was in intact condition and no visible injury was found on the person of the driver Ranjit Kumar Das.

MEDICAL EVIDENCE

18. It was alleged by the victims PW7 and PW8 that two persons aged about 30-35 years boarded the truck from both sides and started beating him and his helper Birju in the cabin. They tied their hands and legs and blind folded them. Some persons then also boarded the truck and caught hold of them, however, there is no visible injury found on the person of driver Ranjit Kumar Das and helper Birju which seems quite improbable viz. the allegations made by them. There should at least have been some stretch marks of the ropes which were tied on their legs and hands and there is no MLC of the said witnesses proved by the prosecution which could corroborate that they were given beatings in the cabin of the truck.

RECOVERY OF ROBBED ARTICLES

19. IO has failed to recover the alleged 500 kg rice nor SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna made any efforts to trace out such a huge quantity of rice.

PUBLIC WITNESSES

20. No public person joined at the time of taking victims from one place to another. It was alleged that they were drove by someone in the truck to various places and were threatened that if they would make any noise they would be killed. After sometime, they were debarked from the truck and made to sit in a car and driven to some place. Thereafter, they were forced to sit in a pit for 2-2 ½ hours. Again they were made to sit in the car and after sometime the complainant and his helper managed to escape and saw their truck parked on a road towards Karnal. Somebody untied his hands and thereafter taking a mobile phone from someone and called his owner.

Facts and circumstances of the case suggests that no sincere efforts were made by police officials concerned to join independent public witnesses in the concerned police proceedings at any of the available stages. In this regard reliance is being placed on the following judgments:-

(a) In case law reported as "Anoop Joshi Vs. State"

1992(2) C.C. Cases 314(HC), High Court of Delhi had observed as under:-

"18. It is repeatedly laid down by this Court in such cases it should be shown by the police that sincere efforts have been made to join independent witnesses. In the present case, it is evidence that no such sincere efforts have been made, particularly when we find that shops were open and one or two shop-keepers could have been SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna persuaded to join the raiding party to witness the recovery being made from the appellant. In case any of the shopkeepers had declined to join the raiding party, the police could have later on taken legal action against such shopkeepers because they could not have escaped the rigours of law while declining to perform their legal duty to assist the police in investigation as a citizen, which is an offence under the IPC".

(b) In a case law reported as "Roop Chand Vs. The State of Haryana" 1999 (1) C.L.R. 69, the Punjab & Haryana High Court held as under:-

"3. I have heard the learned counsel for the parties and gone through the evidence with their help. The recovery of illicit liquor was effected from the possession of the petitioner during noon time and it is in the evidence of the prosecution witnesses that some witnesses from the public were available and they were asked to join the investigation. The explanation furnished by the prosecution is that the independent witnesses were asked to join the investigation but they refused to do so on the ground that their joining will result into enmity between them and the petitioner". "4. It is

well settled principle of the law that the Investigating Agency should join independent witnesses at the time of recovery of contraband articles, if they are available and their failure to do so in such a situation casts a shadow of doubt on the prosecution case. In the present case also admittedly the independent witnesses were available at the time of recovery but they refused to associate themselves in the investigation. This explanation does not inspire confidence because the police officials who are the only witnesses examined in the case have not given the names and addresses of the persons contacted to join it is a very common excuse that the witnesses from the public refused to join the investigation. A police officer conducting investigation of a crime is entitled to ask anybody to join the investigation and on refusal by a person from the public the SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna Investigating Officer can take action against such a person under the law. Had it been a fact that the witnesses from the public had refused to join the investigation, the Investigating Officer must have proceeded against them under the relevant provisions of law. The failure to do so by the police officer is suggestive of the fact that the explanation for non-joining the witnesses from the public is an after thought and is not worthy of credence. All these facts taken together make the prosecution case highly doubtful".

21 Further, there is no CCTV footage of the alleged incident which the IO has procured which could have been a vital piece of evidence in the present case.

22. The remaining witnesses were merely formal police witnesses who deposed regarding the manner of investigation.

CONCLUSION

23. Both PW7 and PW8 i.e. victims failed to identify the accused being one of the robbers despite their lengthy cross- examination by Ld. Addl. PP for the State. No recovery of any 500 kg of rice which was allegedly looted from the truck in question even got recovered by the investigating agency. Neither the complainant nor helper Birju could identify the accused Venkat Rao nor identified that he was one of the persons, who allegedly committed the robbery. The main accused Saif, who as per the prosecution story had decamped with the stolen bags of rice has still not been arrested for the reasons best known to the investigating agency. No record of DD entries for obtaining the SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna NBWs against the said accused on 03.07.2017 have been shown nor the investigating agency carried out any cogent steps which have been taken to recover the said large number of rice bags. There is no CCTV footage or any independent public person, who may have been present at the time of incident or even at the time of alleged robbery who have been examined and thus, in view of the aforesaid detailed findings, there is no hesitation in holding that the prosecution has failed to prove its case beyond reasonable doubts and accordingly accused Venkat Rao @ Anna, deserve a benefit of doubt and hence stand acquitted of the charges levelled against them.

24. File be consigned to record room after due compliance.

25. Needless to say, that in view of Section 357A Cr.P.C. the victim would be entitled to compensation even though the accused persons have been acquitted, if not awarded so far by the Delhi State Legal Authority, as may be permissible, as per subsisting rules and in accordance with law.

Dictated and announced (Shefali Sharma) in the open Court on 13.12.2023 Addl. Session Judge-02 (running in 44 pages) (North), Rohini Courts/Delhi SC No. 478/17, FIR No. 49/2017, PS Alipur State Vs. Venkat Rao @ Anna